FADZAI SHEMUNYORO
versus
RAIMOND GWEKWERERE
and
THE CITY OF HARARE

HIGH COURT OF ZIMBABWE
MANYANGADZE J
HARARE, 23 March, 22 September, 1 October 2025 & 30 April 2026.

Civil trial

E. Ngwerewe, for the plaintiff
E. Chizengera, for the first defendant
N.B. Nyathi, for the second defendant

MANYANGADZE J:

INTRODUCTION

The plaintiff issued summons against the defendants in which he seeks the following relief:

> "1. The Plaintiff be and is hereby declared to be the legitimate allottee and/or owner of Stand No. 6935 Hopley, Harare.
>
> 2. The second Defendant is hereby ordered to correct its register and/or its database to ensure that the Plaintiff is reflected as the legitimate allottee and/or owner of Stand No. 6935 Hopley, Harare.
>
> 3. The first and second Defendants shall pay costs of suit, one paying the other to be absolved."

FACTUAL BACKGROUND

According to the plaintiff's declaration, she was allocated Stand No. 6935 Hopley, Harare ("the stand"), by the second defendant in August 2005.

The first defendant visited the stand sometime in 2020, asserting it was his. He claimed it was also allocated to him by the second defendant.

In his plea, the first defendant claims the property was legitimately allocated to him by the second defendant. The plaintiff must have been duped by unscrupulous employees of the second defendant.

This matter commenced as motion proceedings. These were converted into action proceedings by an order of this court handed down on 14 March 2024, per MUREMBA J. The order is couched in the following terms:

> "IT IS ORDERED BY CONSENT THAT:
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> 1. The matter is referred to trial.
>
> 2. The application shall stand as the summons.
>
> 3. The notice of opposition shall stand as the appearance to defend.
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> 4. The applicant who shall be the plaintiff shall file her declaration within 10 days of this order.
>
> 5. Thereafter the rules of procedure of this court shall apply."

PLAINTIFF'S EVIDENCE

The plaintiff was the first witness for her case. She told the court that in 2005, she was issued with an allocation letter by the second defendant, upon payment of a prescribed fee of Zimbabwean $25,00.

In 2006, she was given a beacon form, which confirmed identification of the pegs marking the boundaries to the stand. She was also issued with a clearance card by the Urban Development Corporation ("UDCORP").

The plaintiff erected a temporary structure. She remained in peaceful occupation of the stand until sometime in 2020, when the first defendant came onto the scene. He claimed to be the owner of the stand.

The plaintiff stated that she went to the offices of the second defendant, together with the first defendant. There, they were shown some records which indicated that the first defendant's name had been written and subsequently cancelled. It was replaced with the plaintiff's name, written on top of the cancelled name. Some ladies in the office explained that the city council was encountering problems of double allocations. A single stand could be allocated to two or even more people. They suggested one of the two be placed on the waiting list. None of them was prepared for that. They decided to go outside and discuss the issue. The first defendant said he wanted to go home and consult his family first and would thereafter revert to the plaintiff. They parted on that note. The first defendant never came back to her as he had promised.

The plaintiff further told the court that the temporary structure she had built was destroyed by rain. She then built a permanent structure, in the form of a four-roomed house.

The plaintiff tendered the following exhibits:

Exhibit 1: Provisional Allocation Letter dated 29 August 2005.

Exhibit 2: Beacon Form dated 3 September 2006

Exhibit 3: UDCORP clearance card dated18 October 2016

The witness was subjected to rigorous cross-examination. She maintained her story as narrated in her evidence-in-chief.

She was shown a handwritten document, said to be the second respondent's data base, which did not bear her name. She insisted her name was checked and found in the computer system, hence issuance of the clearance card.

The witness vehemently denied ever being told by any of the officials of the second respondent that she was not the owner of the stand.

The next witness for the plaintiff was Fealis Magura. She is a sister-in-law to the plaintiff, and lives within the same neighbourhood. Her stand is about 400 m away from that in contention.

The witness accompanied the plaintiff and the first defendant to the second defendant's offices. She narrated the same events. There is therefore no need to repeat the details. She explained that the stands in Hopley were allocated to people who had been displaced by the *murambatsvina* operation in 2005. She further explained that UDCORP was involved in verifying and regularising these allocations. It was not making fresh allocations.

The witness maintained her story under cross-examination. Her version was consistent with that of the preceding witness in all material respects.

DEFENDANT'S EVIDENCE

The defendant was the sole witness in his own defence. He told the court that the stands in Hopley were allocated against the background of the *operation murambatsvina* crisis. He was also a victim of that crisis.

The witness said that he was allocated Stand No. 6935 between 2005 and 2006. He said that there were instructions from the city council to wait for directions on the way forward with development of the stands. During the period 2014-2016, there was a council advert calling upon 2005-06 beneficiaries to submit their particulars at its Hopley offices. The witness submitted copies of his marriage certificate, National Identification card and birth certificates for his family. A file was then opened for him.

The witness went on to tell the court that he later visited the stand in question. He did not specify when he visited the stand. He said that he was surprised to find the plaintiff on the stand. She had constructed what he referred to as an illegal structure on his stand.

Both the plaintiff and the defendant went to the Hopley office to seek clarity on the matter. The witness said that a lady in the office told them that the defendant was the owner of the stand. She showed them the file that was opened for the defendant.

The witness further told the court that he went on to make his own investigations, which revealed that a certain unscrupulous council official duped people and was corruptly selling stands. He was charging amounts ranging from ZW$ 1000-1200,00 for the stands. The plaintiff must have fallen victim to these corrupt activities.

The witness explained that no value had been asked for yet by the council for the allocated stands. Development was in 3 phases. Council started by regularising phase 1 and 2. The disputed stand is in phase 3.

The witness insisted there was no double allocation. He was the rightful owner of the stand.

Under cross-examination, the witness at first denied that there was chaotic administration of the stands allocation process at the council offices. In the next breath, he stated that some unscrupulous officials took advantage of the situation and corruptly allocated stands.

The witness professed ignorance of UDCORP and its activities. He later stated, when asked about the clearance card, that he was not part of the shenanigans of UDCORP.

The witness was unsure of the date when he was allocated the stand, saying it was sometime in 2005 or 2006. However, the register he relied on showed 2006. I t is a

handwritten register showing names of the people who were allocated stands by council in 2006.

It was put to the witness that the summons he initially issued in the Magistrates Court averred that he had purchased the stand. He was at pains to explain this averment. He could only say that it was a typing error. He insisted he never said that he purchased the stand.

The defendant relied on the following exhibits:

Exhibit 4: Letter from the Department of Housing

Exhibit 5: Data base from the Department of Housing

ANALYIS OF EVIDENCE

The issues that fall for determination in this matter are set out in the joint pre-trial minutes as follows:

> "1. Whether or not the Plaintiff was allocated Stand No. 6935, Hopley, Harare prior to the first Defendant?
>
> 2. Whether or not Plaintiff was cleared by UDCORP as the legitimate occupant/allottee of the stand in question?
>
> 3. Whether or not Plaintiff should be declared as the owner/allottee of the stand in question?"

The first issue is in fact the fulcrum on which this case turns. The other issues are subsumed under this fundamental issue.

If it is established that the plaintiff was the first to be allocated the stand by the second defendant, then the situation the court is dealing with is that of a double allocation. One must therefore look to the evidence adduced by the parties, to determine when and to whom allocation of the stand was done.

It is the court's considered view that the evidence of the plaintiff was clear as to how the stand was allocated to her. First and foremost, there was provisional allocation. The plaintiff was issued with a provisional allocation letter upon payment of a prescribed fee. One should not be misled by the term "provisional". It is not a temporary allocation with an expiry date. It must be understood in the context of the conditions set out in the letter. The letter is clear and stipulates the conditions as follows:

> "1. That you should not be owning or purchasing a property in Harare, Chitungwiza, Ruwa, Norton and Epworth. if you misrepresent information in respect of the above, provisional allocation will immediately be withdrawn and the stand forfeited together with any developments with any developments that may have been effected thereon upon the establishment of the correct position.
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> 2. That should you attempt to dispose of the property you already own just before or after this provisional allocation, the allocation shall be deemed null and void and you shall foreit the stand together with any developments effected thereon.
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> 3. That you comply with the payment plan and building standards stipulated for this Scheme by the city of Harare without fail and which will be communicated to you in due course.
>
> 4. The stand is allocated as it is (Voetstoots) with no warranties or guaranties for Latent or patent defects and faults."

It is only when the allottee violates any of these conditions that the provisional allocation is revoked. In my view, in the absence of clear and formal communication of revocation, the allocation remains valid. *Ex facie*, the allocation letter is an official document from the second respondent's Department of Housing and Community Services. It bears an official date stamp, showing it was issued on 29 August 2005. It is signed by the Director of Housing and Community Services.

The allocation letter was followed by a beacon identification form issued on 3 September 2006. It shows or identifies the pegs for the stand as per the City General Plan No. TPY 522/7. In my view, this is a crucial process in the procedure relating to the allocation of a residential stand. You cannot point out beacons or pegs marking the boundary of a stand to a person you do not recognise as the owner or rightful allottee of the stand. There is a special note at the bottom of the form, giving the holder of the form responsibility to maintain the beacons.

Further to that, there is the UDCORP clearance card. The court shall take judicial notice of the status of UDCORP as a statutory corporation established in terms of the law, which is under the purview of the Minister of Local Government. The Minister is also the one responsible for local authorities like the second respondent.

It cannot be said that UDCORP was acting on a frolic of its own when it issued clearance cards. This was against the background of the chaos that seemed to characterise the Hopley housing scheme, whose target beneficiaries were those rendered homeless by the *murambatsvina* operation. As pointed out by the plaintiff's witnesses, the involvement of UDCORP was meant to regularise the allocation of stands under the Hopley scheme. Beneficiaries were issued with a clearance card after verifying their names in a computerised

data base. In my view, UDCORP was not conducting parallel allocation of stands. It was verifying and regularising allocations done by the second defendant.

The terse notice of opposition filed by the second respondent, which became part of the documentation in the action proceedings, contains only two paragraphs.

Tellingly, it does not advert to the allocation letter issued to the plaintiff, the beacon identification form and the UDCORP clearance card. The second defendant does not deny that these documents emanated from its offices.

The first defendant heavily relies on the confirmation letter of 23 February 2023, and the handwritten register said to be the second defendant's data base, date stamped 6 March 2023. There is no allocation letter/form. There is no pegs identification form. There is no clearance card. In other words, there is no paper trail indicating how the stand was allocated to the first defendant. There should at least be a trail of official documentation indicating the stages the first defendant went through in relation to the stand in question.

Unfortunately, there was no appearance for the second defendant in this trial. The lawyer who appeared at the commencement of trial simply indicated he was there to follow proceedings and note any decisions made, as the second defendant was barred. The record shows that the second defendant was in default at the pre-trial conference. The record also shows that no plea, no summary of evidence, no documents discovery schedule, no pre-trial conference minutes were filed by or on behalf of the second defendant. The participation of the second defendant in the entire proceedings, from motion to action proceedings, did not go beyond the filing of the terse notice of opposition referred to. In the circumstances, the plaintiff's evidence on the documents issued from the offices of the second defendant remains uncontroverted by the second defendant.

The first defendant heavily relied on the case of *Stephen Dzehove* v *Wonder Mavhura and The City of Harare* HH 84/24, per MAXWELL J. This was an appeal from the Magistrates' Court in which MAXWELL J, sitting with MHURI J, dismissed the appeal because the appellant had failed to adduce evidence that clearly established his ownership of the stand in contention.

In that case, the court found that the first respondent established that he was allocated the stand by the second respondent under an employee benefit scheme, having been a long

serving employee of the second respondent. A witness from the Department of Housing and Community Services testified and confirmed first position.

In casu, there was no such evidence from the second defendant. The first defendant was unable to rebut the plaintiff's official documentation. The second defendant resigned itself to abiding by the decision of the court.

In the *Stephen Dzehove* case, *supra,* the court made the crucial finding that the record of the court *a quo* showed that the appellant had simply filled in a blank provisional allocation form, issued to the appellant and other home seekers under a tree. That form, and the beacon form that followed, had nothing to show that then were authentic official documents from the second respondent.

In casu, he plaintiff was able to show that the documents he relied on were authentic. They bore the second defendant's official date stamp. There was no rebuttal of the authenticity thereof from the second defendant.

There is also the issue of the credibility of the plaintiff and the first defendant as witnesses in their respective cases. The court found the plaintiff a credible witness for reasons already stated.

Thus, in my view, the instant case is substantially distinguishable from the one cited by the first defendant. The evidence placed before the court is different in material respects. The evidence before that court was such that it was able to make a definitive finding that there was no double allocation of the stand concerned. The same cannot be said in the instant case. There is satisfactory evidence of a prior allocation to the plaintiff.

As already indicated, there is nothing, *ex facie* the documents tendered by the plaintiffs, that indicates that they were fraudulently issued. It is only the first defendant's bald assertions that point to fraud. In the circumstances, the only reasonable inference is that the plaintiff was indeed allocated the stand by the second defendant.

If the first defendant is to be given the benefit of doubt, it would be that he was also allocated the stand, but such allocation was subsequent to that of the plaintiff. What this entails is that the law relating to double allocation or sales of immovable property must ultimately resolve this dispute. That law is clearly set out in the authorities. The general rule is that the first purchaser's claim must succeed. Only in exceptional circumstances, where the

balance of equities lies heavily in favour of the second purchaser, will there be a derogation from the general approach. See *Guga* v *Moyo & Ors* 2000 (2) ZLR 458 (S), *Barros & Anor* v *Chimphonda* 1999 (1) ZLR 58 (S), *Mwayipaida Family Trust* v *Madoroba &Ors* 2004 (1) ZLR 439 (S), *Mary Muchengeti* v *Benjamin Chamwaita & Anor* HH 19/18. In *Guga* v *Moyo*, *supra*, at p 459 E, MAC NALLY JA succinctly stated the law in the following terms:

> "The basic rule in a double sale where transfer has not been passed to either party is that the first purchaser should succeed. The first in time is the stronger in law. The second purchaser is left with a claim for damages against the seller which is usually small comfort. But that rule applies only "in the absence of special circumstances affecting the balance of equities." It has been stated that the balance
>
> of equities must weigh heavily in favour of the second purchaser before the court could favour her over the first purchaser."

In casu, the balance of equities does not favour the first defendant. He was not on the property for years. If the property was, as he claims, given to him under desperate circumstances created by the *murambatsvina* operation, it is baffling why he remained off the property for more than 10 years. At least there should have been a rudimentary structure showing some interest in the stand. It is even more baffling that the second defendant should allocate land to destitute home seekers and not allow immediate occupation. The second defendant did not give any evidence as to what transpired. The balance of probabilities, in the circumstances, clearly lies in favour the plaintiff's case.

DISPOSITION

It is the court's considered view that the plaintiff has satisfactorily established a case for the relief she seeks.

In the result, it is ordered that:

1. The plaintiff be and is hereby declared to be the legitimate allottee and/or owner of Stand No. 6935 Hopley, Harare.

2. The second defendant shall forthwith correct its register and/or its database so that it reflects the plaintiff as the legitimate allottee and/or owner of Stand No. 6935 Hopley, Harare.

3. The first and second defendants shall pay costs of suit, one paying the other to be absolved.

MANYANGADZE J……

Chatsanga & Partners, plaintiff's legal practitioners
Legal Aid Directorate, first defendant's legal practitioners
Gambe Law Group, second defendant's legal practitioners